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California Democrats pass twin bills to 'Trump-proof' the state

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Author: Grant Stringer | Section: Business | 578 Words
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California Democrats in the state Legislature passed two bills Monday intended to "Trump-proof" the state, ending a special session called by Gov. Gavin Newsom after the November election.

A spokesperson for Newsom did not respond when asked if the governor plans to sign the bills. When calling the session, Newsom sought more funding for state lawsuits against the new administration of President Donald Trump. On Monday, Democrats in the state Assembly passed a bill sending an additional $25 million to the state Department of Justice, which has already sued the federal government over its attempts to freeze trillions of dollars in federal funds and revoke birthright citizenship.

But questions arose last week when Sacramento TV station KCRA reported that the governor sought a change to the other piece of legislation that was the focus of the special session: $25 million for grants and contracts to lawyers representing immigrants facing deportation.

According to KCRA, the governor supported an amendment to the bill to specify that the funds couldn't be used to defend immigrants with criminal histories. The governor and his representatives were tight-lipped about that possibility last week — as were Democratic leaders of the state Senate and Assembly. The Senate had already passed both bills without amendments.

Democrats in the state Assembly followed suit on Monday. When Republican Assemblymember Leticia Castillo of Corona introduced an amendment to disqualify immigrants with criminal histories from assistance, Democrats — who have a supermajority in the chamber — tabled it.

Instead, top Democrats announced that they had penned a "letter of legislative intent" that states: "none of the funding ... is intended to be used for immigration-related services for individuals with serious or violent felony convictions."

The letter was signed by Assemblymember Jesse Gabriel of Encino and Sen. Scott Wiener of San Francisco, who sponsored the bill. However, the letter's language won't be included in the bill, Speaker Pro Tem Josh Lowenthal said.

Republicans blasted the letter as a stunt.

"Words are cheap, actions mean everything," said Assemblymember Carl DeMaio of San Diego. He called the letter "a Post-it note on the cover of the bill that has no effect on law."

The hours-long debate was testy. But Democrats flexed their supermajority and passed the bill without Republicans' support.

Democrats also side-stepped the Assembly's GOP members to pass the additional funding for the state Department of Justice, led by Democratic Attorney General Rob Bonta, it wages legal challenges to Trump's actions.

Bonta — a Democrat widely expected to be considering a run for governor in 2026 — has already joined at least two multi-state legal challenges to stall Trump's actions revoking birthright citizenship and potentially freezing trillions in federal spending.

Democratic Assemblymember Marc Berman of Palo Alto said he expected California to see a significant "return on

investment" by funding the lawsuits.

He noted the state's successful track record in taking Trump to court during his first term. California sued Trump's prior administration 123 times, Bonta said last month, and helped recoup billions of dollars nationally.

"It is clear and obvious to anybody … that California has an obligation to defend its citizens from overreach by any presidential administration," Berman said on the Assembly floor.

Again, Republicans disagreed. Speaking on the floor, Assemblyman Bill Essayli, a Riverside Republican, said that Democrats were laser-focused on opposing Trump at a time when Newsom is seeking broad federal support to help Los Angeles recover and rebuild from last month's devastating wildfires.

"We should be working with the president of the United States," Essayli said. "Not fighting him and suing him."

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